

Sandeep Kumar Singh v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 13 December 2019 · Writ-C No. 41252 of 2019 (Allahabad) · Writ-C No. 41252 of 2019 · **Writ disposed of; objections before Executive Engineer for a speaking final order; coercive recovery stayed; Section 127 appeal if aggrieved.**

HEADNOTE

A consumer's writ to quash Purvanchal Vidyut Vitran Nigam Ltd.'s provisional assessment dated 6 June 2017 and recovery order dated 2 August 2019, alleging coercive recovery without hearing and without following the U.P. Electricity Supply Code, 2005, is disposed of without a merits determination. Taking a lenient view, the Division Bench directed the petitioner to appear before the Executive Engineer on 26 December 2019 with objections and evidence; the Engineer must pass a speaking final order within four weeks; coercive action is stayed for six weeks or until disposal of the objection, whichever is earlier (vacated on default); and if aggrieved by the final order, the petitioner may appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Sandeep Kumar Singh, a consumer of Purvanchal Vidyut Vitran Nigam Limited, filed a writ petition in the Allahabad High Court seeking certiorari to quash a provisional assessment dated 6 June 2017 and a recovery order dated 2 August 2019, and mandamus restraining coercive recovery. He alleged that the licensee was proceeding without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department was also heard.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation after directing final assessment on objections to provisional assessment

HOLDING

A writ challenging a provisional assessment and recovery citation is disposed of by directing the consumer to file objections before the assessing Executive Engineer, who shall pass a speaking final order after considering those objections; coercive recovery is stayed pending that process; and if the consumer is aggrieved by the final order, the remedy is an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections to the provisional assessment, the Court left any remaining challenge to an appeal under Section 127 rather than deciding the assessment or recovery on merits in writ. ¶ 1

s127-appeal-lies-only-against-final-order-not-provisional-assessment Faced with certiorari against a provisional assessment dated 6 June 2017 and a later recovery, the Court did not treat that provisional order as the end of the statutory process; it directed the Executive Engineer to pass a final order, after which Section 127 would be available. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT DATED 6 JUNE 2017 AND RECOVERY ORDER DATED 2 AUGUST 2019 WERE ILLEGAL FOR WANT OF HEARING OR NON-COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court took a lenient view and directed objections before the Executive Engineer without examining those contentions. ¶ 1

